

Court No. - 21

Case :- WRIT - C No. - 20160 of 2012

Petitioner :- Smt. Indu Chawala And Another

Respondent :- State Of U.P. Thru Secy. And Another

Petitioner Counsel :- Nipun Singh

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble R.K. Agrawal, J.

Hon'ble Mushaffey Ahmad, J.

Heard learned counsel for the petitioner, learned Standing Counsel appearing for the respondent No. 1 and Sri Pankaj Kumar Shukla, learned counsel appearing for the respondent No. 2.

By this writ petition the petitioner has prayed for sanctioning a new electricity connection or to release the earlier electricity connection in her name.

Learned counsel for the petitioner submits that the petitioner has submitted all the required documents along with fees and fulfilled all formalities as per 4:1 of the Electricity Supply Code, 2005 except no objection certificate of the landlord/landlady.

Learned counsel for the respondent No. 2 submits that under the provisions of U.P. Electricity Supply Code, 2005 in the absence of no objection certificate from the landlord in 4.4, the respondent can supply the energy by taking the indemnity bond.

In view of the aforesaid, we are of the view that the respondent may intimate the petitioner about necessary requirement for supply of the electricity including the requirement of indemnity bond as contemplated under the Electricity Supply Code. The petitioner's application after completing the necessary formality shall be considered afresh for the supply of electricity connection expeditiously preferably within a period of three months from the date of production of certified copy of this order.

With the aforesaid observations, the writ petition is disposed of.

Order Date :- 25.4.2012

AM/-